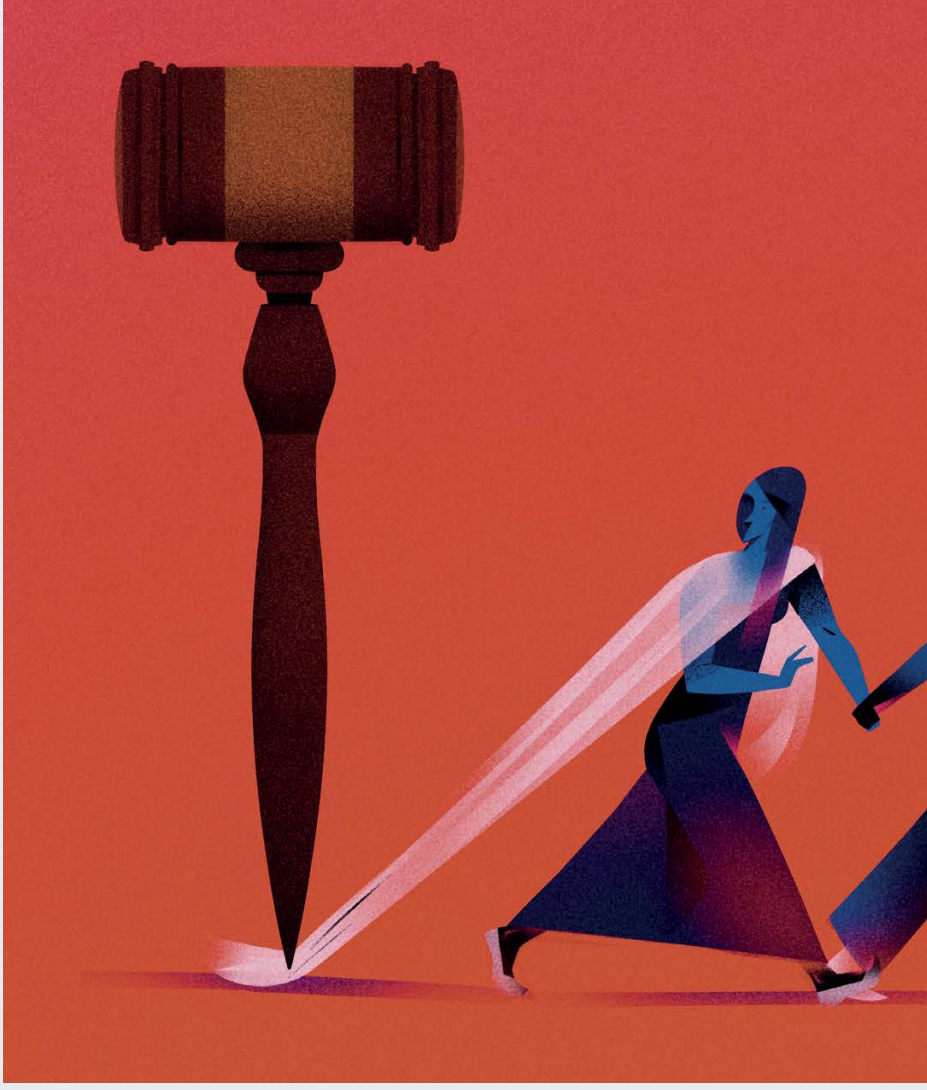


▶ GUJARAT

Love, Law and Control

Young adults seeking to marry out of love now face a formidable legal barrier in Gujarat. A new law enforces parental approval as a precondition. Social activists say it extinguishes women's choice, reinforces caste

By **Jumana Shah**

YOU CAN BE ROMEO AND I'LL BE JULIET, but in Gujarat, the parents must abet. Or so it will be if a controversial proposal to amend the Gujarat Registration of Marriages Act, 2006, goes through. In the second quarter of the 21st century, it's the parents of love-lorn couples who get to say 'yes'! Or, far more likely, 'no'. The draft bill requires couples wishing to marry of their own will to upload their parents' government ID cards on an official portal with their contact details, stating on record whether their parents have consented to the union or not. The registrar's office will notify parents of both bride and groom within 10 working days. It will also scrutinise all documents. The marriage can be registered only 30 days after the application.

Deputy chief minister and home minister Harsh Sanghavi, speaking in the assembly, justified the step as a means to curb cases of 'love jihad', preventing fraud and protecting women from coercion or deceit. Members of the Patidar and the Thakor communities—across party lines—have been demanding decisive steps by the state to discourage marital unions that do not have parental approval. "Under the influence of social media, young girls are getting deceived into relationships that ruin their lives. Parents and the entire community feel helpless watching their daughters suffer. This law is essential," says Geniben Thakor, the Congress's lone Lok Sabha MP from Gujarat.

GIRLS CAN'T CHOOSE

In off-the-record conversations, several women's activists working in rural Gujarat say young girls—empowered by rising education levels and online global exposure—are increasingly refusing to marry against their wishes. They debunk 'love jihad' as an overstated bogey and report that the majority of 'problematic' cases are merely of young couples who have to elope to marry outside their caste or community. Beyond the rhetoric, the new provision could actually work counterwise to its own stated purpose: it may only heighten the chances of elopement as young couples choose to register their marriage outside the state, while despair and harassment could increase at home.

Says Poonam Kathuria of the Society for Women's Action and Training Initiatives in Gujarat, "At its core, this is about agency of young people. For a country with a large young population, fostering informed autonomy is not just a personal matter but central to the kind of future we are shaping. Patriarchal communities are simply against any autonomy of choice for